

Surjeet Singh v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 10 February 2012 · Writ-C No. 7843 of 2012; Civil Misc. Recall Application No. 75750 of 2012 · **Writ disposed; consider afresh on clause 4.4 indemnity bond; recall refused.**

HEADNOTE

Where a connection was refused solely for want of the landlord's no-objection certificate, the Division Bench did not quash the rejection or direct a connection. It held that under clause 4.4 of the U.P. Electricity Supply Code, 2005 the licensee may still process supply by taking an indemnity bond, and directed the Executive Engineer to intimate that requirement and consider the application afresh after the formalities, preferably within three months. A later recall by persons claiming as landlords was refused; they were left to proceedings as permissible in law after a connection had already been granted.

FACTUAL SUMMARY

The Executive Engineer rejected Surjeet Singh's application for an electricity connection on 18 August 2011 because the landlord had not granted a no-objection certificate. The petitioner said he was never asked to furnish a bond, and that clause 4.4 of the U.P. Electricity Supply Code, 2005 allows supply on an indemnity bond without landlord NOC. A Small Cause Court had declined to take cognizance of the connection dispute. Later purchasers of the shop, claiming as landlords, sought recall of the 10 February 2012 disposal after a connection had already been granted.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.4

occupant connection on indemnity bond without landlord NOC

HOLDING

Refusal of a new connection solely because the landlord has not granted a no-objection certificate does not exhaust the application. Under clause 4.4 of the U.P. Electricity Supply Code, 2005, the licensee may supply energy on an indemnity bond in the absence of that certificate. The licensee is to intimate the applicant of the necessary requirements, including that bond, and consider the application afresh after those formalities, preferably within three months. The writ was disposed of on that direction; the Executive Engineer's rejection was not quashed on the merits, and no connection was mandated. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER WAS ENTITLED TO A CONNECTION ON THE EXISTING PAPERS WITHOUT FURTHER FORMALITY

Only a fresh consideration after completing the indemnity-bond and other Supply Code requirements was directed. ¶ 1

NOT DECIDED — WHETHER THE CONNECTION LATER GRANTED TO THE PETITIONER WAS INVALID AS AGAINST THE LANDLORDS

Recall of the 10 February 2012 order refused; landlords left to take proceedings as permissible in law. ¶ 2